EXHIBIT "A"
to
SPECIAL WARRANTY DEED

The real property conveyed pursuant to the Special Warranty Deed to which this exhibit is attached is being conveyed subject to:

1. Taxes or assessments which are not shown as existing liens by the records of any taxing authority that levies taxes or assessments on real property or by the public records.

2. Any facts, rights, interest or claims which are not shown by the public records but which could be ascertained by an inspection of said land or by making inquiry of persons in possession thereof.

3. Easements, claims of easements or encumbrances which are not shown by the public records.

4. Discrepancies, conflicts in boundary lines, shortage in area, encroachments and any other facts which a correct survey would disclose, and which are not shown by public records.

5. Unpatented mining claims; reservations or exceptions in patents or in Acts authorizing the issuance thereof, water rights, claims or title to water.

6. Any lien, or right to a lien, for services, labor or material heretofore or hereafter furnished, imposed by law and not shown by the public records.

7. Defects, liens, encumbrances, adverse claims or other matters, if any, created, first appearing in the public records or attaching subsequent to the effective date hereof but prior to the date the proposed insured acquires of record for value the estate or interest or mortgage thereon covered by this commitment.

8. Taxes for the year 2006 and subsequent years not yet due and payable.

9. These premises are within the boundaries of Mapleton City District and are subject to the levies and assessments thereof.

10. The effect of the 1969 Farmland Assessment Act, by reason of that certain Application for Assessment and Taxation of Agricultural Land, recorded December 02, 2002 as Entry No. 145711:2002 of Official Records.

11. Subject to the effect, if any, of that certain Mining Notice of Tunnel Claim as recorded January 17, 1885 as Entry No. 139 in Book 27 at Page 200 of Official Records.

12. Easements or rights of way of the public to use highway and rights of way for ditches, tunnels and telephone and transmission line, as disclosed in that certain patent recorded May 16, 1921 as Entry No. 2991 in Book 206 at Page 171 of Official Records.

13. An easement dated September 20, 1956 in favor of Utah Power and Light Company recorded September 24, 1956 as Entry 13468 in Book 725 at page 157 of Official Records.

14. Right of way for ingress and egress as disclosed by that certain Warranty Deed recorded August 24, 1978 as Entry 33977 in Book 1675 at Page 78 of Official Records.

15. Right of Way the diversion of water and appurtenances thereto belonging from two tunnel streams as disclosed by that certain Certificate of Appropriation of Water recorded June 11, 1982 as Entry 14589 in Book 1985 at Page 536 of Official Records.

16. An easement granted to Ensign-Bickford Company, a Corporation by Instrument recorded November 16, 1998 as Entry No. 117886 in Book 4858 at Page 608 of Official Records.

17. An easement granted to Ensign-Bickford Company, a Connecticut Corporation by Instrument recorded November 17, 1998 as Entry No. 118447 in Book 4860 at Page 793 of Official Records.

18. Subject to the effects of the Mapleton Lateral of the Strawberry Valley Project as disclosed by that certain Deed recorded October 16, 1919 as Entry No. 8650 in Book 191 at Page 25 of Official Records.

19. Conflicts in boundary lines created by that certain Warranty Deed executed by C. Nate Nelson, a married man, in favor of Margaret R. Galland, as Trustee of the Testamentary Trust of Margaret Gary Rose, deceased, recorded August 30, 1990 as Entry No. 28549 in Book 2719 at page 420 of Official Records.

20. Conflicts in boundary lines created by that certain Warranty Deed executed by Philip N. Broadbent and Betty Jean Broadbent, in favor of Randy Tidwell and Elizabeth Tidwell, husband and wife as joint tenants with full rights of survivorship, and Wallace K. Joyner, recorded July 13, 1995 as Entry No. 44861 in Book 3719 at page 510 of Official Records.

21. Conflicts in boundary lines created by that certain Warranty Deed executed by Oak Springs Ranches, J.L. Franklin Trust Co., in favor of Rocking O. Ranch Inc., recorded June 03, 1997 as Entry No. 42322 in Book 4285 at page 623 of Official Records.

City Exhibit 19

ENT 145802:2005 PG 1 of 8
RANDALL A. COVINGTON
UTAH COUNTY RECORDER
2005 Dec 16 2:01 pm FEE 25.00 BY VK
RECORDED FOR TALON GROUP
ELECTRONICALLY RECORDED

AFTER RECORDING RETURN TO:
The Preserve at Mapleton Development Company, LLC
407 North Main Street
Springville, Utah 84663

PLEASE MAIL TAX NOTICES TO:
The Preserve at Mapleton Development Company, LLC
407 North Main Street
Springville, Utah 84663

For Information Only: Tax Parcel Nos. 27-034-0001; 27-034-0047

Space Above for Recorder's Use Only

SPECIAL WARRANTY DEED

Craig Thueson, an Individual, with its principal office at 7711 Pheasant Wood Dr. Sandy, Utah 84093-6292, ("Grantor") does hereby CONVEY AND WARRANT AGAINST ALL CLAIMING BY, THROUGH, OR UNDER HIM AND HIS PREDECESSOR SUBURBAN LAND RESERVE, INC. to:

THE PRESERVE AT MAPLETON DEVELOPMENT COMPANY, LLC,
a Utah Corporation,

whose address is 407 North Main Street, Springville, Utah 84663 ("Grantee"), for the sum of Ten Dollars ($10.00) and other good and valuable consideration, the following described tract of land (the "Property") in Salt Lake County, State of Utah:

A parcel of land being a portion of the Southeast 1/4 of Section 14, and Section 23, Township 8 South, Range 3 East, Salt Lake Base and Meridian, Utah County, Utah, more particularly described as follows:

Commencing at a Brass Cap Monument marking the Northeast Corner of said Section 23; thence South 0.449 Feet and East 0.013 (per a Warranty Deed from Orton to Deseret Title Holding Company, recorded as Entry No. 48825-79) to the real Point Of Beginning:

Thence the following four (4) courses and distance along said Warranty Deed, 1) South 01°43'20" East a distance of 1336.41 Feet; 2) thence South 89°14'04" West a distance of 1355.50 feet; 3) thence South 00°46'44" East a distance of 1338.33 feet; 4) thence South 00°04'49" West a distance of 2702.98 feet to the south line of Section 23; thence South 88°54'16" West along said south line, a distance of 1381.72 feet to a Brass Cap Monument marking the South 1/4 Corner of Section 23; thence North 00°09'53" East Along The N-S mid section line, a distance of 1354.64 feet to a found iron pin, LS# 142870; thence South 89°20'38" West along the south line of the

LD00028

Northeast 1/4 of the Southeast 1/4 of Section 23, a distance of 1307.19 feet to a found iron pin LS# 142870; thence North 00°01'42" West along the west line of the Northeast 1/4 of the Southeast 1/4 of Section 23 a distance of 1331.47 feet to the south line of the Whiting Property as described in a Quit Claim Deed, Entry No. 35885-79; thence along said property the following two (2) courses and distances, 1) east a distance of 668.32 feet; 2) thence North 502.80 feet to the southerly line of the Mapleton Lateral Canal; thence along the southerly line of said Canal as follows, northeasterly 182.63 feet along the arc of a non-tangent 588.14-foot radius curve to the left, said curve having a central angle of 17°47'31" and subtended by a chord that bears North 48°54'34" East a distance of 181.90 feet to the curves end; thence North 40°00'49" East a distance of 758.05 feet to a point of curvature of a 373.17-foot radius curve to the left; thence northeasterly 161.05 feet along the arc of said curve, having a central angle of 24°43'38" and subtended by a chord that bears North 27°39'00" East a distance of 159.80 feet to the curves end; thence North 15°16'49" East a distance of 105.86 feet to a point of curvature of a 271.57-foot radius curve to the right; thence northeasterly 195.85 feet along the arc of said curve, having a central angle of 41°19'13" and subtended by a chord that bears North 35°56'26" East a distance of 191.63 feet to the curves end; thence North 56°36'49" East a distance of 315.04 feet to a point of curvature of a 301.57-foot radius curve to the left; thence northeasterly 214.33 feet along the arc of said curve, having a central angle of 40°43'15" and subtended by a chord that bears North 36°15'11" East a distance of 209.85 feet to the curves end; thence North 15°52'49" East a distance of 530.75 feet to a point of curvature of a 80.54-foot radius curve to the right; thence northeasterly 46.36 feet along the arc of said curve, having a central angle of 32°58'49" and subtended by a chord that bears North 32°22'14" East a distance of 45.72 feet to the curves end; thence North 48°52'49" East a distance of 55.46 feet to a point of curvature of a 731.34-foot radius curve to the left; thence northeasterly 99.54 feet along the arc of said curve, having a central angle of 07°47'54" and subtended by a chord that bears North 44°58'52" East a distance of 99.46 feet to the curves end; thence North 41°04'49" East a distance of 194.80 feet; thence leaving said Canal, North 88°56'07" East a distance of 62.82 feet; thence South 00°26'45" East a distance of 42.15 feet; thence North 89°23'48" East a distance of 212.15 feet; thence South 89°27'24" East a distance of 64.83 feet; thence North 00°44'56" West a distance of 21.24 feet; thence North 89°05'14" East a distance of 1342.19 feet to the real Point Of Beginning.

(Basis of bearing is the Utah State Coordinate System, Central Zone or South 89°18'20" West along the north line of said Section 23).

[Contains 245.60 acres, more or less]

http://docimg.co.utah.ut.us/bmiweb/print.asp?Country=8&County=18&Page=18&Page Size=10&File=

EXCEPTING FROM THE ABOVE DESCRIBED PROPERTY THE FOLLOWING TWO (2) PARCELS:

Exception Parcel 1:

A parcel of land lying within the East ½ of Section 23, Township 8 South, Range 3 East, SLB&M., Utah County, Utah, more particularly described as follows:

Commencing at a Brass Cap Monument marking the Northeast Corner of said Section 23; thence South 2501.53 feet and West 1299.61 feet to the Grantor's East Property line, (as described in that certain Warranty Deed from Orton to Deseret Title Holding Company, recorded as Entry No. 48825-79) which shall be the real point of beginning and running:

thence S 00°46'44" E	191.06 feet;
thence S 00°04'49" W	2,702.98 feet;
thence S 88°54'16" W	1,381.72 feet;
thence N 00°09'53" E	1,217.72 feet;
thence N 42°48'14" E	389.73 feet;
thence N 38°54'40" E	370.46 feet;
thence N 36°00'27" E	214.39 feet;
thence N 37°39'42" E	263.40 feet;
thence N 85°12'51" E	57.51 feet;
thence N 25°14'50" E	236.19 feet;
thence N 47°01'13" E	505.47 feet;
thence N 18°35'25" E	174.22 feet; and
thence N 31°29'29" E	21.60 feet to the real point of
beginning.	

(Basis of Bearing is the Utah State Coordinate System, Central Zone or S 89°18'20" W along the North line of said Section 23).

[Contains approximately 64.10 acres, more or less]

Exception Parcel 2:

A parcel of land lying within the Northeast ¼ of the Northeast ¼ Section 23, Township 8 South, Range 3 East, SLB&M., Utah County, Utah, more particularly described as follows:

Commencing at a Brass Cap Monument marking the Northeast Corner of said Section 23; thence South 0.449 feet and East 0.013 feet (as described in that certain Warranty Deed from Orton to Deseret Title Holding Company, recorded as Entry No. 48825-79) to the real point of beginning and running:

Clmt

Thence the following two (2) courses and distance along the boundary described by said Warranty Deed:

S 01°43'20" E	1,336.41	feet; and
thence S 89°14'04" W	642.81	feet;

Thence along the following eleven (11) courses:

N 25°52'40" E	350.67	feet;
thence N 23°13'14" E	377.26	feet;
thence N 59°23'26" E	86.38	feet;
thence N 38°10'48" E	34.81	feet;
thence N 02°41'47" W	83.17	feet;
thence N 37°19'35" W	25.81	feet;
thence S 84°48'35" W	86.43	feet;
thence N 29°54'24" W	98.09	feet;
thence N 42° 39'03"E	275.80	feet;
thence N 07°57'21" E	227.11	feet to the North line of Grantors Property; and
thence N 89°05'14" E	141.21	feet to the real point of beginning

(Basis of Bearing is the Utah State Coordinate System, Central Zone or S 89°18'20" W along the North line of said Section 23).

[Contains approximately 10.914 acres, more or less]

EXCEPTING THEREFROM all oil, gas, minerals and mineral rights; provided, however that Grantor relinquishes all rights to enter upon the surface of all or any portion of the Property for any purpose in connection with the development or utilization of any rights excepted from this conveyance or to extract such minerals within five hundred (500) feet of the surface of the Property.

SUBJECT TO lien for general taxes and assessments not yet due and payable and those matters set forth on Exhibit "A" attached hereto and incorporated by this reference.

TOGETHER WITH ALL RIGHT, TITLE AND INTEREST OF GRANTOR in and to 19.50 shares in the Mapleton Irrigation Company as evidenced by Certificate No. 2122, which shares are being conveyed without any representation or warranty, express or implied.

Grantor for itself and for its successors in interest does by these presents expressly limit the covenants of this deed to those herein expressed, and excludes all other covenants arising or to arise by statute or otherwise, express or implied.

806599.01

ENT 145802:2005 PG 5 of 8

IN WITNESS WHEREOF, Grantor has executed this Special Warranty Deed this 14 day of December, 2005.

GRANTOR: CRAIG THUESON
an Individual

By: Craig Thueson
Craig Thueson

STATE OF UTAH)
:ss
COUNTY OF SALT LAKE)

On this 14 day of December, 2005, personally appeared before me Mark B. Gibbons, President of Suburban Land Reserve, Inc., a Utah non-profit corporation, who acknowledged to me that he signed the foregoing instrument as President for said corporation.

Notary Public
See attached.

Cont

ENT 145802:2005 PG 6 of 8

State of Utah

County of Salt Lake

On the 14 day of December, 2005, personally appeared before me Craig Thueson , the signer of the foregoing instrument who being by me duly sworn did acknowledge that he executed the same.

Notary Public

Notary Public
VICTORIA J. WALKER
150 E. Social Hall Avenue, Suite 525
Salt Lake City, Utah 84111
My Commission Expires
July 5, 2006
State of Utah

EXHIBIT "A"
to
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21. Conflicts in boundary lines created by that certain Warranty Deed executed by Oak Springs Ranches, J.L. Franklin Trust Co., in favor of Rocking O. Ranch Inc., recorded June 03, 1997 as Entry No. 42322 in Book 4285 at page 623 of Official Records.

CMW

City Exhibit 20

Mapleton City Planning Commission Staff Report

Meeting Date: 13, April 2006

Item: 2 **Applicant:** Nathan Simpson **Prepared by:** Tracy Padgett/Mathew W. Evans **Parcel ID#**27:034:0058, 0057, 0012, 0008, 0045, 0048, 0044, 0010, 0041, 0046, 0021 & 0040	**Request:** (Continued 3-23-06) An Ordinance amending the Official Zoning Map of Mapleton City rezoning approximately 206 acres of property located at approximately 1250 East 1600 South (Parcel #'s 27:034:0058, 0057, 0012, 0008, 0045, 0048, 0044, 0010, 0041, 0046, 0021 & 0040) from the A2 Zone Designation to the PRC-4 Zone Designation. The applicant is Nathan Simpson.	
Zone: A2 and A2 (TDR-R)	**Acreage:** 246	**Number of Lots:**
General Plan Designation: Rural Residential	**Neighborhood Meeting:** None required.	**Development Agreement Proffered:** Required

NEIGHBORHOOD ISSUES: A letter has been sent to all property owners within 500 feet of the proposed rezone as required by law.

STAFF REPORT SUMMARY OF KEY ISSUES:

- ☆ The applicant is proposing to rezone the property to the PRC-4 Zone from the A2 Zone.
- ☆ The rezone supports the proposed General Plan update.
- ☆ The concept plan submitted would follow the guidelines under the PRC-4 Zone.

POSSIBLE ACTIONS

- ☆ Recommendation of Approval - This action would be necessary to send it to the City Council with a positive recommendation of approval
- ☆ Continuation of this item. - This action should be taken if more information is needed to make a recommendation to the City Council.
- ☆ Recommendation of Denial - This action should considered if the Planning Commission believes that the proposed zone change is inconsistent with the Mapleton City General Plan or if the Planning Commission finds that the proposed rezone is premature.

FINDINGS OF FACT:

1. This item was continued from the March 23, 2006 Planning Commission meeting. This item was been re-public noticed and includes the Jack Parry property that was up for consideration as a TDR receiving site. The applicant has combined the properties and has resubmitted the proposal.
2. The Planning Commission tabled this item over concerns about smaller lots being incorporated in the plan. Although the PRC has no lot size requirement, it does give the Planning Commission and City Council the ability to dictate design elements of the project. The PRC Zone also allows the Planning Commission and City Council to require buffering against existing developments with "like" sized lots. The "gray area" on the large lot buffering requirements are the fact that no adjacent property was part of a previous development. All of the lots were created by "meets and bounds". Some are legal-nonconforming, some exceed the lot size requirements in the zone. Because the adjacent lots are not apart of an existing subdivision, and were not previously platted as such, they are in nature, eligible to

become a TDR receiving site. Some adjacent properties are even large enough to be subdivided and still comply with zoning.

3. The applicant's have resubmitted a plan that better reflects the direction given to them by the Planning Commission. That was that lot sizes less than 1 acre in size were not desirable in this location. The applicant's plan now shows the smallest lot at 1 acre or greater, complying with the wishes of the Planning Commission.
4. The Staff was concerned that the intersection of 1250 East did not line up. This was also addressed by the applicant. The applicant also shifted 2000 South further south to avoid the Evans/Young property.
5. Other property owners have expressed interest in joining the PRC, and may make subsequent applications to do so. The PRC ordinance does allow land to be added to the PRC. This may also help to make a better overall street plan for the project.
6. The DRC is still concerned with storm water run-off and other geological hazards present on this property. The concerns are as follows:

    A. The soils report submitted by the previous applicant shows that there are collapsible soils present. This means that no storm water sumps will be allowed. All storm water must be retained on site.
    B. The geotechnical report indicates that the alluvial fan area below Slide Canyon is subject to earth movement. This may be mitigated by the presence of a debris damn/basin on the property.
    C. The Wasatch Fault runs through the eastern portion of this project and the eastern portion of the proposed lots. The recommended setback from the fault is 100 feet. Will this create problems with building envelopes?
    D. Known debris flow areas exist on this property. The proposal is to allow the debris flow areas next to the canal. Will the channels be large enough to handle the potential run-off?

PREVIOUS FINDINGS OF FACT:

1. The applicant has purchased the property previously owned by Suburban Land Reserve. The property was previously given a zone designation of A2 TDR-R, and had proposed a project with 136 homes/dwelling units. The project was approved (conceptually) with a mixture of large lots and pad site homes within a gated/private community for "empty nesters."
2. The applicant is proposing 102 lots on 246 acres, or a density of one dwelling unit per 2.4 acres. The applicant has also added land to the original site. Although the amount of land has increased by 80 acres, the 102 total lots are still well below the original 136 approved.
3. The applicant is requesting the PRC Zone designation to allow for flexibility in lot size and configuration. The applicant would like to have the lowest density (5+ acre sized lots) of the project along the hillside and the higher density (1+ acre sized lots) on the parcels furthest to the West. One of the proposed lots, which is an area shown as a "future phase" on the concept plan, will actually remain as a remnant 50 acre parcel for the time being. The applicant has indicated that they would like to build one dwelling unit on the fifty acre parcel at this time. The remaining portion of the land would be subdivided to give parcels to family members of the partnership.
4. The PRC Zone application process requires that applicant give a concept plan that will ultimately guide the final design of the project. The applicant has provided a concept plan for the entire development. As indicted, the proposed layout shows a variety of lot sizes ranging in size from 7 acre to 1 acre lots. The DRC has reviewed the concept plan and has many concerns, all of which can probably be mitigated through the process of the review of the development. The main issues are related to the Transportation Master Plan (TMP). The applicant is proposing to shift access points contrary to the some of the requirements of the TMP suggest that both 2000 South and 2600 South extend to and through the property, ultimately connecting with 1200/1250 East Street. Also missing is the 900 East connection with 2000 South. The applicant is proposing that a road between 2000 and 2600 South off of Main Street, as the main access point to the subdivision from the West. The applicant is also requesting that additional access to the property be taken from 1600 West in two locations, one at about 400 East and

one at 1250 East. What is left off is an access from 900 East as shown on the TMP. The applicant is proposing to cul-de-sac what would have been an access from 2000 South, rather than connecting 900 East and 2000 South, or having 900 East extend southward and cross the canal. Earlier proposals had 900 East extending through. The applicant does not own the property from 1600 South to the Perry property. But a stub to the North from the project on about 900 East would satisfy this requirement.

5. A previous geo-technical report was done for the project. The original applicant had proposed two debris/detention basins, one at the mouth of Slide Canyon and another at the mouth of a canyon directly south of Slide. The idea behind the two debris basins was to mitigate any mud flow from potential slides up the canyon during a heavy rain or snow melt event. The original applicant's geologist testified in meetings that he believed most of the debris that was going to come down the canyon had already done so, but to be safe, the debris basin idea would work. This would allow water to be "metered-off" at a "natural" drainage rate, and the water would be diverted through the project to a detention basin next to the canal. The applicant has not specifically mentioned the debris basin idea, but is showing a duel pathway/water way system that is similar to what SLR had proposed, with detention basins along the canal.
6. A question that has not been answered is how storm water flows would be handled with this project. In some areas, Street sump collection may occur. Absent from this application (at this time) is a geo-technical report. Staff suspects that there may be areas where collapsible soils maybe present. This has been the case in other areas further west. Also, the presence of the canal in this location is also an issue with storm water. Debris basins may work next to the canal today, and in fact there is an allowed amount of water to naturally flow from the land into the canal. However, when the canal is piped, there will be no metered or natural flow into the canal. The detention basins will need to be designed in such a manner that properties below the project are not flooded by any storm water from the Preserve.
7. One of the concerns expressed by some of the Planning Commission members was the idea that some of the lots would exceed 5.25 acres in size, and would therefore be able to apply for green-belt status on a portion of the property. Upon final approval of the subdivision, we may want to look at deed restrictions on some of the larger parcels making it difficult to achieve green-belt status. The reason we would want to do this is because these lots will be in a traditional subdivision setting and will need to contribute to the property tax assessments to cover the long term repair of streets, water & sewer lines, snow removal, etc.

CONCLUSIONS:

The proposed rezone is consistent with the General Plan policies for this area. The overall density of the project is far less than originally approved, and with more land added.

RECOMMENDATION:

That the Planning Commission recommends approval of the Preserve at Mapleton Rezone to the City Council, as proposed.

City Exhibit 21

WHEN RECORDED RETURN TO:
Bailey & Jennings
Attn : William T. Jennings
584 S. State St.
Orem, Utah 84058
(801) 426-8600

ENT 120571:2008 PG 1 of 3
RANDALL A. COVINGTON
UTAH COUNTY RECORDER
2008 Nov 10 2:34 pm FEE 20.00 BY CS
RECORDED FOR JENNINGS, WILLIAM T

NOTICE OF DEFAULT

Notice is hereby given that there is now a default under the terms of that certain Promissory Note Secured by Deed of Trust dated January 26, 2007, executed by **THE PRESERVE AT MAPLETON DEVELOPMENT COMPANY, LLC** as Trustor in favor of **MAGNETBANK** as Beneficiary, wherein Bart J. Bailey is named as Successor Trustee. The Trust Deed was recorded February 1, 2007 as Entry No. 17012:2007 and encumbers the following described real property, located in Utah County, State of Utah:

See Attached Exhibit "A"

A breach of obligations for which the trust property was conveyed as security has occurred, specifically, the Promissory Note matured on July 26, 2008 and Trustor failed to pay all sums due and owing under the Promissory Note. Under the terms of the Promissory Note, the entire unpaid principal balance of the Promissory Note, plus accrued interest, penalties, costs, trustee's fees and attorney's fees are now due and owing in full.

Navona, L.C. does hereby demand payment of all sums and performance of all acts necessary to cure the default.

The undersigned Trustee elects to sell or cause to be sold the property described to satisfy the obligations arising under the terms of the Promissory Note and the Construction Deed of Trust.

Dated this 7 day of November, 2008.

Bart J. Bailey, Esq.
Successor Trustee

STATE OF UTAH)
:
COUNTY OF UTAH)

The foregoing instrument was acknowledged before me this 7 day of November, 2008, by Bart J. Bailey, Successor Trustee.

KATHY VAN HOUTEN
NOTARY PUBLIC-STATE OF UTAH
251 W. RIVER PARK DR. #150
PROVO, UTAH 84604
COMM. EXP. 11-26-2009

Kathy Van Houten
NOTARY PUBLIC
My Commission Expires: 11-26-09

EXHIBIT A

(Description of Property)

All that certain real property located in Utah County, State of Utah and more particularly described as follows:

Beginning at a point which is North 00° 18' 56" West along the section line 648.83 feet from the West Quarter Corner of Section 23, Township 8 South, Range 3 East, Salt Lake Base and Meridian; thence North 00° 18' 56" West along said section line 295.17 feet; thence South 88° 29' 52" East 660.49 feet; thence North 01° 34' 16" West 435.80 feet; thence North 79° 12' 02" East 26.21 feet; thence North 87° 57' 35" East 646.20 feet; thence South 02° 02' 25" East 381.40 feet; thence South 51° 55' 31" East 103.13 feet; thence South 16° 11' 43" West 429.36 feet to the northerly line of the Mapleton Lateral Canal right of way; thence along said northerly line the following six (6) calls: along the arc of a 427.68 foot radius curve to the right 54.73 feet through a central angle of 07° 19' 54", the chord of which bears North 52° 56' 59" West 54.69 feet; North 49° 17' 00" West 8.09 feet to a point of curvature; along the arc of a 241.12 foot radius curve to the left 202.56 feet through a central angle of 48° 08' 00", the chord of which bears North 73° 21' 00" West 196.66 feet; South 82° 35' 00" West 386.40 feet; West 524.78 feet to a point of curvature; along the arc of a 193.42 foot radius curve to the left 168.62 feet through a central angle of 49° 56' 55", the chord of which bears North 64° 14' 32" West 163.33 feet to the point of beginning. (Also known as The Preserve at Mapleton Residential Development, Plat "D")

ALSO Beginning at a point which is North 00°18'56" West along the section line 533.15 feet and East 1292.61 feet from the West Quarter Corner of Section 23, Township 8 South, Range 3 East, Salt Lake Base and Meridian; thence North 16°11'43" East 429.36 feet; thence North 51°55'31" West 103.13 feet; thence North 02°02'25" West 381.40 feet; thence North 89°38'53" East 670.79 feet; thence South 00°37'25" East 91.97 feet; thence South 36°59'17" West 83.46 feet; thence South 36°48'11" East 210.08 feet; thence South 53°11'49" West 243.18 feet; thence South 25°21'51" East 366.56 feet to the northerly line of the Mapleton Lateral Canal right of way; thence along said northerly line the following five (5) calls: along the arc of a 543.14 foot radius curve to the right 104.92 feet through a central angle of 11°04'06", the chord of which bears South 54°42'57" West 104.76 feet; North 29°45'00" West 20.00 feet to a point of curvature; along the arc of a 523.14 foot radius curve to the right 216.09 feet through a central angle of 10°57'08", the chord of which bears South 72°05'00" West 214.56 feet; South 83°55'00" West 155.34 to a point of curvature; along the arc of a 427.68 foot radius curve to the right 294.61 feet through a central angle of 39°28'06", the chord of which bears North 76°20'57" West 288.82 feet to the point of beginning.

ALSO Beginning at a point which is South 89° 18' 20" West along the Section line 141.18 feet and South 0.99 feet from the Northeast corner of Section 23, Township 8 South, Range 3 East, Salt Lake Base and Meridian; thence along the Mapleton City Open Space property the following ten (10) calls: South 07° 57' 21" West 227.12 feet; South 42° 39' 03" West 275.80 feet; South 29° 54' 24" East 98.09 feet; North 84° 48' 35" East 86.43 feet; South 37° 19' 35" East 25.81 feet; South 02° 41' 47" East 83.17 feet; South 38° 10' 48" West 34.81 feet; South 59° 23' 26" West 86.38 feet; South 23° 13' 14" West 377.26 feet; South 25° 52' 40" West 350.67

feet; thence leaving said property line South 89° 14' 04" West 712.70 feet; thence South 00° 46' 44" East 1147.27 feet to the Mapleton City Open Space property line; thence along said property line the following nine (9) calls: South 31° 29' 29" West 21.60 feet; South 18° 35' 25" West 174.22 feet; South 47° 01' 13" West 505.47 feet; South 25° 14' 50" West 236.19 feet; South 85° 12' 51" West 57.51 feet; South 37° 39' 42" West 263.40 feet; South 36° 00' 27" West 214.39 feet; South 38° 54' 40" West 370.46 feet; South 42° 48' 14" West 389.47 feet to the Quarter Section line; thence North 00° 09' 43" East along said Quarter Section line 136.79 feet to the Northeast corner of the Southeast Quarter of the Southwest Quarter of said Section 23; thence South 89° 20' 35" West along the 1/16 Section line 1307.23 feet to the Northwest corner of the Southeast Quarter of the Southwest Quarter of said Section 23; thence North 00° 01' 54" West along the 1/16 Section line 1339.39 feet to the Boundary Agreement line recorded as Entry No. 149120:2005 and 112:2006 with the Utah County Recorder's Office; thence South 89° 49' 15" East along said Boundary Agreement line 626.02 feet; North 01° 30' 46" East along said boundary agreement line and its line extended 461.89 feet to a point of curvature on the Southeasterly line of a 80.00 foot wide right of way of the Mapleton Lateral Canal; thence along said right of way line and along the arc of a 603.14 foot radius curve to the left 21.21 feet through a central angle of 02° 00' 53", the chord of which bears North 61° 15' 27" East 21.21 feet; thence North 29° 45' 00" West 10.00 feet to a point of curvature on the Southeasterly line of a 50.00 foot wide right of way of said Mapleton Lateral Canal; thence along said right of way line the following three (3) calls: along the arc of a 523.14 foot radius curve to the left 210.50 feet through a central angle of 20° 20' 00", the chord of which bears North 50° 05' 00" East 209.39 feet; North 39° 55' 00" East 758.05 feet to a point of curvature; along the arc of a 378.17 foot radius curve to the left 82.94 feet through a central angle of 12° 34' 00", the chord of which bears North 33° 38' 00" East 82.78 feet; thence North 62° 39' 00" West 5.00 feet to a point of curvature on the southeasterly line of a 40.00 foot wide right of way of said Mapleton Lateral Canal; thence along said right of way the following ten (10) calls: along the arc of a 373.17 foot radius curve to the left 79.24 feet through a central angle of 12° 10' 00", the chord of which bears North 21° 16' 00" East 79.09 feet; North 15° 10' 59" East 105.76 feet to a point of curvature; along the arc of a 271.57 foot radius curve to the right 195.91 feet through a central angle of 41° 20' 00", the chord of which bears North 35° 51' 00" East 191.69 feet; North 56° 31' 00" East 314.98 feet to a point of curvature; along the arc of a 301.57 foot radius curve to the left 213.94 feet through a central angle of 40° 38' 48", the chord of which bears North 36° 11' 36" East 209.48 feet; North 15° 47' 00" East 531.27 feet to a point of curvature; along the arc of a 80.54 foot radius curve to the right 46.27 feet through a central angle of 32° 54' 48", the chord of which bears North 32° 19' 36" East 45.63 feet; North 48° 47' 06" East 55.43 feet to a point of curvature; along the arc of a 731.34 foot radius curve to the left 99.56 feet through a central angle of 07° 48' 00", the chord of which bears North 44° 53' 00" East 99.49 feet; North 40° 59' 00" East 194.00 feet; thence leaving said canal right of way line East 63.67 feet; thence South 00° 27' 22" East 44.70 feet; thence North 89° 23' 48" East 212.13 feet; thence South 89° 27' 24" East 64.83 feet; thence North 00° 44' 56" West 21.24 feet; thence North 89° 05' 14" East 1201.00 feet to the point of beginning. (A portion of this is also known as The Preserve at Mapleton Residential Development, Plat "A")

Tax Serial Nos.:	27:34:8	27:34:10	27:34:12	27:34:44
	27:34:45	27:34:48	27:34:57	

City Exhibit 22

After recording mail to:
Bart J. Bailey, Esq.
Bailey & Jennings, LC
584 South State Street
Orem, Utah 84058

ENT 133308:2008 PG 1 of 5
RANDALL A. COVINGTON
UTAH COUNTY RECORDER
2008 Dec 23 1:14 pm FEE 31.00 BY SW
RECORDED FOR BAILEY, BART J

TRUSTEE'S DEED

This Trustee's Deed is made by Bart J. Bailey, a member of the Utah State Bar, as Successor Trustee, under the Trust Deed described below, in favor of LD III, LLC, 584 South State Street, Orem, Utah 84058, as Grantee ("Grantee").

Whereas, on December 1, 2006, The Preserve at Mapleton Development Company, LLC, as Trustor ("Trustor"), executed for the benefit of LD III, LLC, as Beneficiary ("Beneficiary"), a certain Trust Deed ("Trust Deed") to secure the performance by Trustor of its obligations under a Promissory Note executed and delivered for valid consideration to LD III, LLC; which Trust Deed was recorded in the office of the Utah County Recorder, State of Utah, on April 1, 2008, as Entry No. 38186:2008, relating to and describing certain real property ("Property") described in Exhibit "A" attached hereto; and

Whereas, breach and default was made under the terms of the Trust Deed in the particulars set forth in the Notice of Default described below; and

Whereas, Bart J. Bailey was duly appointed by the Beneficiary as Successor Trustee by a Substitution of Trustee ("Substitution of Trustee") recorded in the office of the Utah County Recorder, State of Utah, on May 12, 2008, as Entry No. 55739:2008; and

Whereas, Bart J. Bailey, as Successor Trustee, executed a Notice of Default ("Notice of Default") containing an election to sell the Property, recorded the Notice of Default in the office of the Utah County Recorder, State of Utah, on May 12, 2008, as Entry No. 55740:2008, and mailed via US Postal Service Certified Mail, Return Receipt Requested, postage prepaid, not more than ten days after the recording of the Notice of Default, a copy of the recorded Notice of Default – together with a copy of the recorded Substitution of Trustee and a letter setting forth Bart J. Bailey's name, mailing address, bona fide office address, business hours and telephone number – to the parties to the Trust Deed; and

Whereas, Bart J. Bailey, as Successor Trustee, in consequence of the Notice of Default and in accordance with the Trust Deed, executed a Notice of Trustee's Sale ("Notice of Trustee's Sale") on November 7, 2008; which Notice of Trustee's Sale declared that the Property, described therein and below, would be sold a public auction to the highest bidder for lawful money of the United States, payable at the time of sale, declared therein to occur on December 19, 2008, at 10:00 a.m., at the Fourth Judicial District Court, Provo, Department, 125 North 100 West, Provo, Utah; which Notice of Trustee's Sale was published once a week for three consecutive weeks in a newspaper having a general circulation in the county in which the Property is situated, the last publication occurring not less than ten days and not more that thirty days before the date of the sale; which Notice of Trustee's Sale was posted in a conspicuous place on the Property and at the office of

the Utah County Recorder, State of Utah, in which county the Property is located, not less than twenty days before the date of the sale; and a copy of the Notice of Trustee's Sale was mailed via US Postal Service Certified Mail, Return Receipt Requested, postage prepaid, not less than twenty days before the date of sale, to the parties to the Trust Deed; and

Whereas, on December 19, 2008, at 10:00 a.m., at the Fourth Judicial District Court, Provo Department, 125 North 100 West, Provo, Utah – the time and place indicated in the Notice of Trustee's Sale – Bart J. Bailey did sell the Property at public auction to Grantee, it being the highest bidder therefore, for the sum of $9,778,437.79 paid by Grantee at the time of sale in lawful money of the United States, pursuant to the terms of the Notice of Trustee's Sale; subject to a Deed of Trust with Assignment of Leases and Rents, Security Agreement and Fixture Filing, dated January 26, 2007, and executed by The Preserve at Mapleton Development Company, LLC as Trustor, for the benefit of Magnetbank, recorded in the office of the Utah County Recorder, State of Utah, on February 1, 2007, as Entry No. 17012:2007; and

Whereas, all applicable statutory and contractual provisions have been complied with;

Now Therefore, Bart J. Bailey, as Successor Trustee, in consideration of the premises recited and the sum mentioned above, bid and paid by Grantee, the receipt of which is hereby acknowledged, hereby grants and conveys unto Grantee, without any covenant or warranty, express or implied, all of that certain Property situated in Utah County, State of Utah, described in Exhibit "A" attached hereto and incorporated herein, together with all buildings, fixtures and improvements thereon and all water rights, rights of way, easements, rents, issues, profits, income, tenements, hereditaments, privileges and appurtenances belonging to said Property.

Date: December 23, 2008

Bart J. Bailey, Successor Trustee

STATE OF UTAH)
: ss.
COUNTY OF UTAH)

The foregoing instrument was subscribed, sworn to and acknowledged before me this 23rd day of December, 2008.

KATHY VAN HOUTEN
NOTARY PUBLIC-STATE OF UTAH
251 W. RIVER PARK DR. #150
PROVO, UTAH 84604
COMM. EXP. 11-26-2009

Kathy Van Houten
Notary Public

EXHIBIT "A"

Parcel 1 - Commencing at the Southwest Corner of the Northwest Quarter of Section 23, Township 8 South, Range 3 East, Salt Lake Base and Meridian; thence East 30 chains; thence North 10 chains; thence West 20 chains; thence South 5 chains; thence West 10 chains; thence South 5 chains to the place of beginning, lying North of the strip of land granted to the United States for right-of-way for the Mapleton Lateral Canal to the U. S. Reclamation Service as said canal passes through said land from West to East and as described in Book 182, Page 442 of Deeds records of Utah County.

Parcel 2 - Commencing 1 rod East and 40 rods North from the Southwest corner of the Northwest Quarter of Section 23, Township 8 South, Range 3 East, Salt Lake Base and Meridian; thence East 39 rods; thence South 20 rods; thence West 39 rods; thence North 20 rods to the place of beginning, lying North of the strip of land granted to the United States for right-of-way for the Mapleton Lateral Canal to the U. S. Reclamation Service as said canal passes through said land from West to East and as described in Book 182, Page 442 of Deeds records of Utah County.

Parcel 3 - Commencing 20 chains South and 10 chains West from the Northeast Corner of the Northwest Quarter of Section 23, Township 8 South, Range 3 East, Salt Lake Base and Meridian; thence South 10 chains; thence West 10 chains; thence North 9.75 chains; thence West 20 chains; thence North 0.25 chains; thence East 30 chains to the point of beginning.

Parcel 4 - Commencing 10 chains North of the Southwest Corner of the Northwest Quarter of Section 23, Township 8 South, Range 3 East, Salt Lake Base and Meridian; thence East 30.5 rods; thence North 30 rods; thence West 30.5 rods; thence South 30 rods to the point of beginning.

LESS AND EXCEPTING THEREFROM that land described in that certain Warranty Deed recorded May 22, 1985 as Entry No. 14539 in Book 2219 at Page 678 in the Utah County Recorder's office.

ALSO LESS AND EXCEPTING THEREFROM that land described in that certain Warranty Deed recorded January 26, 1998 as Entry No. 7039 in Book 4502 at Page 112 in the Utah County Recorder's office.

Parcel 5 - Commencing 40 rods North and 80 rods East from the Southwest Corner of the Northwest Quarter of Section 23, Township 8 South, Range 3 East, Salt Lake Base and Meridian; thence North 39 rods; thence West 49.5 rods; thence South 39 rods; thence East 49.5 rods to the place of beginning.

LESS AND EXCEPTING THEREFROM that land described in that certain Warranty Deed recorded May 22, 1985 as Entry No. 14539 in Book 2219 at Page 678 in the Utah County Recorder's office.

ALSO LESS AND EXCEPTING THEREFROM that land described in that certain Warranty Deed recorded January 26, 1998 as Entry No. 7039 in Book 4502 at Page 112 in the Utah County

Recorder's office.

Parcel 6 - Beginning at a point which lies North 0° 18' 56" West along the section line 981.444 feet and East 658.982 feet from the West One Quarter Corner of Section 23, Township 8 South, Range 3 East, Salt Lake Base and Meridian; and running thence North 86° 44' 49" East 48.66 feet; thence North 01° 54' 19" West 379.60 feet; thence South 88° 25' 44" West 46.43 feet; thence South 01° 34' 16" East 381.02 feet to the point of beginning.

Parcel 7 - A parcel of land being a portion of the Southeast 1/4 of Section 14, and Section 23, Township 8 South, Range 3 East, Salt Lake Base and Meridian, Utah County, Utah, more particularly described as follows: Commencing at a Brass Cap Monument marking the Northeast Corner of said Section 23; thence South 0.449 feet and East 0.013 feet (per a Warranty Deed from Orton to Deseret Title Holding Company, recorded as Entry No. 48825-79) to the real point of beginning; thence the following four (4) courses and distances along said Warranty Deed, (1) South 01° 43' 20" East a distance of 1336.41 feet; (2) thence South 89° 14' 04" West a distance of 1355.50 feet; (3) thence South 00° 46' 44" East a distance of 1338.33 feet; (4) thence South 00° 04' 49" West a distance of 2702.98 feet to the south line of Section 23; thence South 88° 54' 16" West along said south line, a distance of 1381.72 feet to a Brass Cap Monument marking the South 1/4 Corner of Section 23; thence North 00° 09' 53" East along the N-S mid section line, a distance of 1354.64 feet to a found iron pin, LS # 142870; thence South 89° 20' 38" West along the south line of the Northeast 1/4 of the Southeast 1/4 of Section 23, a distance of 1307.19 feet to a found iron pin LS # 142870; thence North 00° 01' 42" West along the west line of the Northeast 1/4 of the Southeast 1/4 of Section 23 a distance of 1331.47 feet to the south line of the Whiting Property as described in a Quit Claim Deed, Entry No. 35885-79; thence along said property the following two (2) courses and distances: (1) east a distance of 668.32 feet; (2) thence North 502.80 feet to the southerly line of the Mapleton Lateral Canal; thence along the southerly line of said Canal as follows, northeasterly 182.63 feet along the arc of a non-tangent 588.14-foot radius curve to the left, said curve having a central angle of 17° 47' 31" and subtended by a chord that bears North 48° 54' 34" East a distance of 181.90 feet to the curve's end; thence North 40° 00' 49" East a distance of 758.05 feet to a point of curvature of a 373.17 foot radius curve to the left; thence northeasterly 161.05 feet along the arc of said curve, having a central angle of 24° 43' 38" and subtended by a chord that bears North 27° 39' 00" East a distance of 159.80 feet to the curve's end; thence North 15° 16' 49" East a distance of 105.86 feet to a point of curvature of a 271.57-foot radius curve to the right; thence northeasterly 195.85 feet along the arc of said curve, having a central angle of 41° 19' 13" and subtended by a chord that bears North 35° 56' 26" East a distance of 191.63 feet to the curve's end; thence North 56° 36" 49" East a distance of 315.04 feet to a point of curvature of a 301.57-foot radius curve to the left; thence northeasterly 214.33 feet along the arc of said curve, having a central angle of 40° 43' 15" and subtended by a chord that bears North 36° 15' 11" East a distance of 209.85 feet to the curve's end; thence North 15° 52' 49" East a distance of 530.75 feet to a point of curvature of a 80.54-foot radius curve to the right; thence northeasterly 46.36 feet along the arc of said curve, having a central angle of 32° 58' 49" and subtended by a chord that bears North 32° 22' 14" East a distance of 45.72 feet to the curve's end; thence North 48° 52' 49" East a distance of 55.46 feet to a point of curvature of a 731.34-foot radius curve to the left; thence northeasterly 99.54 feet along the arc of said curve, having a central angle of 07° 47' 54" and subtended by a chord that bears North 44°

58' 52" East a distance of 99.46 feet to the curve's end; thence North 41° 04' 49" East a distance of 194.80 feet; thence leaving said Canal, North 88° 56' 07" East a distance of 62.82 feet; thence South 00° 26' 45" East a distance of 42.15 feet; thence North 89° 23' 48" East a distance of 212.15 feet; thence South 89° 27' 24" East a distance of 64.83 feet; thence North 00° 44' 56" West a distance of 21.24 feet; thence North 89° 05' 14" East a distance of 1342.19 feet to the real point of beginning. (Basis of Bearing is the Utah State Coordinate System, Central Zone or South 89° 18' 20" West along the North line of said Section 23.)

LESS AND EXCEPTING a parcel of land lying within the East 1/2 of Section 23, Township 8 South, Range 3 East, Salt Lake Base and Meridian, Utah County, Utah, more particularly described as follows: Commencing at a Brass Cap Monument marking the Northeast Corner of said Section 23; thence South 2501.53 feet and West 1299.61 feet to the Grantor's East Property line, (as described in that certain Warranty Deed from Orton to Deseret Title Holding Company, recorded as Entry No. 48825.79) which shall be the real point of beginning and running: thence South 00° 46' 44" East 191.06 feet; thence South 00° 04' 49" West 2702.98 feet; thence South 88° 54' 16" West 1381.72 feet; thence North 00° 09' 53" East 1217.72 feet; thence North 42° 48' 14" East 389.73 feet; thence North 38° 54' 40" East 370.46 feet; thence North 36° 00' 27" East 214.39 feet; thence North 37° 39' 42" East 263.40 feet; thence North 85° 12' 51" East 57.51 feet; thence North 25° 14' 50" East 236.19 feet; thence North 47° 01' 13" East 505.47 feet; thence North 18° 35' 25" East 174.22 feet; and thence North 31° 29' 29" East 21.60 feet to the real point of beginning. (Basis of Bearing is the Utah State Coordinate System, Central Zone of South 89° 18' 20" West along the North line of said Section 23.)

ALSO LESS AND EXCEPTING a parcel of land lying within the Northeast 1/4 of the Northeast 1/4 of Section 23, Township 8 South, Range 3 East, Salt Lake Base and Meridian, Utah County, Utah, more particularly described as follows: Commencing at a Brass Cap Monument marking the Northeast Corner of said Section 23; thence South 0.449 feet and East 0.013 feet (as described in that certain Warranty Deed from Orton to Deseret Title Holding Company, recorded as Entry No. 48825-79) to the real point of beginning and running; thence the following two (2) courses and distances along the boundary described by said Warranty Deed: South 01° 43' 20" East 1336.41 feet; and thence South 89° 14' 04" West 642.81 feet; thence along the following eleven (11) courses: North 25° 52' 40" East 350.67 feet; thence North 23° 13' 14" East 377.26 feet; thence North 59° 23' 26" East 86.38 feet; thence North 38° 10' 48" East 34.81 feet; thence North 02° 41' 47" West 83.17 feet; thence North 37° 19' 35" West 25.81 feet; thence South 84° 48' 35" West 86.43 feet; thence North 29° 54' 24" West 98.09 feet; thence North 42° 39' 03" East 275.80 feet; thence North 07° 57' 21" East 227.11 feet to the North line of Grantor's Property; and thence North 89° 05' 14" East 141.21 feet to the real point of beginning. (Basis of Bearing is the Utah State Coordinate system, Central Zone or South 89° 18' 20" West along the North line of said Section 23.)

ALSO LESS AND EXCEPTING any and all outstanding oil and gas, mining and mineral rights, etc., together with the right of the proprietor of a vein or lode to extract his ore therefrom should the same be found to penetrate of intersect the premises and the right of ingress and egress for the use of said rights.

City Exhibit 23

Craig Carlile (0571)
RAY QUINNEY & NEBEKER P.C.
86 North University Avenue, #430
Provo, Utah 84601-4420
Telephone: (801) 342-2400

Attorneys for Defendants David R. Simpson, Nathan R. Simpson, He Kiakolu, LLC, Koamalu Plantation, LLC, The Preserve at Mapleton Development Company, LLC, Pheasant Meadows, LLC

IN THE FOURTH JUDICIAL DISTRICT COURT

UTAH COUNTY, STATE OF UTAH, PROVO DEPARTMENT

LESLIE D. MOWER, an individual; et al., Plaintiffs, v. DAVID R. SIMPSON, an individual; et al., Defendants, and KOAMALU PLANTATION INVESTMENT, LLC, a Utah limited liability company, et al., Rule 19 Defendants.	**ORDER DENYING PLAINTIFFS' MOTION FOR PRELIMINARY INJUNCTION AND DISSOLVING TEMPORARY RESTRAINING ORDER** Civil No: 090403844 Judge: Samuel D. McVey

Plaintiffs Leslie D. Mower, LD SQ, LLC, LD III, LLC, LD Purpose, LLC and Navona, LC ("Plaintiffs") filed a motion for a Temporary Restraining Order on November 20, 2012. This Court entered a Temporary Restraining Order, *ex parte*, (the "TRO") that same date and set the matter for

hearing for November 30, 2012 on Plaintiffs' Motion For A Preliminary Injunction. At the hearing, Plaintiffs were represented by Bart J. Bailey and William T. Jennings of Bailey & Jennings, LC. The Defendants David R. Simpson, Nathan R. Simpson, He Kiakolu, LLC, Koamalu Plantation, LLC, The Preserve at Mapleton Development Company, LLC, and Pheasant Meadows, LLC, (collectively the "Defendants') were represented by Craig Carlile of Ray Quinney & Nebeker PC. Before the hearing, the court carefully considered the memoranda and the other materials submitted by the parties. At the hearing, the Court received evidence and oral arguments from counsel. At the conclusion of the hearing, the court announced the following Findings and Conclusions for purposes of the motions before the Court:

FINDINGS

1. Plaintiffs presented no evidence that any of them have any interest in the debris basin identified as tax serial number 27:034:0083 and more fully described in paragraph 2 of the order portion of the TRO.

2. The Preserve, the Hawaii property, water credit interests and construction bond funds, to the extent any of the Plaintiffs have an interest in any of those assets, are all pledged as collateral for loans under existing security agreements in favor of some or all of the Plaintiffs. Accordingly, the Plaintiffs already have a remedy and they do not need an extraordinary remedy such as the TRO or a preliminary injunction.

3. As to the Hawaii property, the only evidence presented was to the effect that the managers of the property are not doing anything wrong. Accordingly, the evidence is that there has not been a breach of fiduciary duty. Moreover, the evidence demonstrated that any interest that any of the Plaintiffs may have in the Hawaii property is adequately secured.

4. As to The Preserve at Mapleton Development Company, LLC ("The Preserve") and its assets, the evidence indicates that Plaintiff Leslie D. Mower is in control of the property under the merger doctrine cited by the Defendants, and according to that doctrine, all of her interests have been taken care of.

5. The evidence presented indicates that the Mapleton City Transferable Development Rights ("TDRs") are not subject to the Magnet Bank trust deed and security agreement. Accordingly, none of the Plaintiffs have an interest in the TDRs.

6. The Mapleton City water credits do appear to be covered by the Magnet Bank trust deed and security agreement which was assigned to Navona, LC. However, as indicated above, the trust deed provides an adequate remedy, and therefore an extraordinary remedy is not warranted.

7. The construction bond funds are funds of The Preserve subject to the bond terms and subject to the Magnet Bank trust deed and security agreement. As indicated above, the trust deed provides an adequate remedy and therefore an extraordinary remedy is not warranted.

8. The evidence indicates that the Mapleton Irrigation Company at Mapleton, Utah shares of water are not appurtenant to The Preserve property and never have been. Accordingly, they are not covered by the Magnet Bank trust deed and security agreement and none of the Plaintiffs have any interest in those shares of water.

CONCLUSIONS

1. The Plaintiffs failed to meet their burden of proof that they would suffer irreparable harm unless a preliminary injunction was issued.

2. Plaintiffs have an adequate remedy thus obviating the need for an extraordinary remedy.

3. On balance, the harm to Defendants if a preliminary injunction were to issue outweighs any

threatened harm to Plaintiffs as Plaintiffs are adequately secured against harm with existing security interests.

4. There would be no violation of public interest in refusing to grant the preliminary injunction.

5. There is not a likelihood that Plaintiffs will prevail on the merits.

IT IS THEREFORE ORDERED:

A. That Plaintiffs' motion for a preliminary injunction is denied, and

B. The Temporary Restraining Order issued on November 20, 2012 is dissolved.

Dated: February 12, 2013
03:11:14 PM

/s/ Samuel McVey
District Court Judge

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing **[SECOND PROPOSED] ORDER DENYING PLAINTIFFS' MOTION FOR PRELIMINARY INJUNCTION AND DISSOLVING TEMPORARY RESTRAINING ORDER** was sent by U.S. Mail, postage prepaid, this 30th day of January, 2013 to the following:

Bart J. Bailey
William T. Jennings
BAILEY & JENNINGS, LC
584 South State Street
Orem, Utah 84058

Steven R. Sumsion
Spencer MacDonald

Daniel M. Woods
SUMSION & MACDONALD
86 North University Avenue, #400
Provo, Utah 84601-4420

Mark D. Eddy
Morgan L. Cummings
HANSEN WRIGHT EDDY & HAWS, P.C.
233 South Pleasant Grove Blvd., Suite 202
Pleasant Grove, Utah 84062

Julian D. Jensen
JULIAN D. JENSEN PC
Attorney at Law
311 South State Street, #380
Salt Lake City, Utah 84111

Jonathan L. Jaussi
FREEDOM LEGAL
P.O. Box 460
Payson, Utah 84651

Chris D. Greenwood
GREENWOOD & BLACK
3575 North 100 East, Suite 325
Provo, Utah 84604

/s/ Rhonda Bartholomew_____

1213778

City Exhibit 24

MAPLETON CITY
CITY COUNCIL MINUTES
JUNE 7, 2017

PRESIDING AND CONDUCTING:	Mayor Brian Wall
Members in Attendance:	Ryan Farnworth Scott Hansen Jim Lundberg- Excused Mike Nelson Jonathan Reid
Staff in Attendance:	Cory Branch, City Administrator Camille Brown, City Recorder Sean Conroy, Community Development Director John Jackson, Public Safety Director/Police Chief Eric Johnson, City Attorney
Minutes Taken by:	Camille Brown, City Recorder

The items may not have been heard in the order below.

Mayor Wall called the meeting to order at 7:00 p.m. Cl. Nelson gave the invocation and Cl. Hansen led the Pledge of Allegiance.

OPEN FORUM:
Park Roney read the email he sent to the council. See attached.

APPROVAL OF MINUTES:
Item 1. **Approval of City Council Meeting Minutes –May 17, 2017**
Motion: Cl. Farnworth moved to approve the meeting minutes for May 17, 2017
Second: Cl. Nelson seconded the motion.
Vote: Passed 4:0

PUBLIC HEARING ITEM:
Item 2. **Consideration of an ordinance amending Mapleton City Code (MCC) Section 18.84.380 related to home occupations that include the teaching of athletic and water safety lessons on or in purpose built outdoor facilities.**

Sean Conroy, Community Development Director, presented the staff report to those in attendance. The applicant made a request for a home occupation license to teach swimming lessons at her home. The request was denied until the code could be modified. Staff is recommending approval.
Public hearing was opened at 7:09 pm no comments were made.

Motion: Cl. Nelson moved to approve an ordinance amending Mapleton City Code (MCC) Section 18.84.380 related to home occupations that include the teaching of athletic and water safety lessons on or in purpose built outdoor facilities.
Second: Cl. Farnworth seconded the motion.
Cl. Reid Aye
Cl. Hansen Aye

Cl. Farnworth Aye
Cl. Nelson Aye
Vote: Passed 4:0
Ordinance No. 2017-02

Item 3. Consideration of a Resolution rezoning from A-2 to the Residential-Minor Agricultural (RA-2) Zone and Preliminary Plat Approval for the Holley Farm Estates Subdivision Plat "A" consisting of eleven lots, located at approximately 600 West 1200 North.

Sean Conroy, Community Development Director, reviewed the staff report for those in attendance. This development is consistent with the general plan, the subdivision ordinance and zoning ordinance. Staff is recommending approval. Public hearing was opened at 7:20pm, no comments were made.

Motion: Cl. Farnworth moved to approve a resolution rezoning from A-2 to the Residential-Minor Agricultural (RA-2) Zone and Preliminary Plat Approval for the Holley Farm Estates Subdivision Plat "A" consisting of eleven lots, located at approximately 600 West 1200 North.

Second: Cl. Reid seconded the motion
Cl. Hansen Aye
Cl. Farnworth Aye
Cl. Nelson Aye
Cl. Reid Aye
Vote: Passed 4:0
Resolution No. 2017-35

ACTION ITEMS:

Item 4. Consideration of a Resolution approving the Preliminary Plat for the Harvest Park Plat "N" subdivision consisting of 33 lots located at approximately 2225 West Harvest Parkway in the SDP-1 Zone

Sean Conroy, Community Development Director, reviewed the staff report for those in attendance.

Motion: Cl. Nelson moved to approve resolution approving the Preliminary Plat for the Harvest Park Plat "N" subdivision consisting of 33 lots located at approximately 2225 West Harvest Parkway in the SDP-1 Zone

Second: Cl. Reid seconded the motion
Cl. Nelson Aye
Cl. Reid Aye
Cl. Hansen Aye
Cl. Farnworth Aye
Vote: Passed 4:0
Resolution No. 2017-36

Item 5. Consideration of a Resolution approving a request to apply a Transferable Development Rights Receiving Site (TDR-R) Overlay to a 190-acre property known as the Preserve located at approximately 1600 South and 1300 East, and the review of a revised concept plan for the development increasing the total density from 92 lots to 176 lots.

Sean Conroy, Community Development Director, reviewed the staff report for those in attendance. The council reviewed the request to apply TDR's on 190 acres. The council received public comment at the May 3rd meeting and continued the item to this agenda. The applicant has reduced the density from 176 lots to 169 lots. The open space was reduced and they are still requesting to amend Plat A.

The previous concept plan was reviewed to show the lots that were removed. The lots across the bench have been increased in size.
Eric Johnson, City Attorney stated that Plats A, B and C were subject to a development agreement for 136 lots and if you continued the additional plats you have a total of 191 lots which is a higher density than what the current applicant is applying for.
Andy Ball, applicant, stated that he did a survey from individuals in the area. He has come up with something that he believes will work for everyone. He feels like they have taken the comments and modified the concept plan.
Cl. Reid asked about design aspects. He is concerned about the design of the homes that will be built in this area and said that it's important to be able to have a say on the CCR's and the design.
Cl. Nelson inquired about the time frame that the land would continue to be vacant. Andy stated that it will be determined by the market.
Cl. Hansen stated that he has seen significant progress since we last met.

Motion: Cl. Hansen moved to approve a Resolution approving a request to apply a Transferable Development Rights Receiving Site (TDR-R) Overlay to a 190-acre property known as the Preserve located at approximately 1600 South and 1300 East, and the review of a revised concept plan for the development increasing the total density not to exceed 169 lots as shown on the concept plan and that the applicant meet all special conditions as noted in the staff report.

Second: Cl. Nelson seconded the motion

Cl. Farnworth Nay
Cl. Nelson Aye
Cl. Reid Nay
Cl. Hansen Aye
Mayor Wall Aye
Vote: Passed 3:2
Resolution No. 2017-37

Item 6. Consideration of a Resolution adopting a commercial street light fee for developments located in commercial zones.

Sean Conroy, Community Development Director, reviewed the staff report for those in attendance.

Motion: Cl. Farnworth moved to approve a resolution adopting a commercial street light fee for developments located in commercial zones.

Second: Cl. Nelson seconded the motion

Cl. Reid Aye
Cl. Hansen Aye
Cl. Farnworth Aye
Cl. Nelson Aye
Vote: Passed 4:0
Resolution No. 2017-38

Item 7. Consideration of the renewal of a Lease Agreement between Mapleton City and Verizon Wireless regarding City owned property generally located at 3135 South 450 West.

Cory Branch, City Administrator, reviewed the staff report for those in attendance

Motion: Cl. Farnworth moved to approve this item for the renewal of a Lease Agreement between Mapleton City and Verizon Wireless regarding City owned property generally located at 3135 South 450 West.

Second: Cl. Hansen seconded the motion

MA00200

Cl. Hansen Aye
Cl. Farnworth Aye
Cl. Nelson Aye
Cl. Reid Aye
Vote: Passed 4:0
Resolution No. 2017-39

Item 8. Consideration of a Resolution authorizing approval to bid out the 2017 road improvement projects.

Steven Lord, Public Works Director/City Engineer, reviewed the staff report for those in attendance. The amount that will be spent is approximately $491,000 for road maintenance this year.

Motion: Cl. Farnworth moved to approve a resolution authorizing approval to bid out the 2017 road improvement projects**.**
Second: Cl. Nelson seconded the motion
Cl. Farnworth Aye
Cl. Nelson Aye
Cl. Reid Aye
Cl. Hansen Aye
Vote: Passed 4:0
Resolution No. 2017-40

MAYOR, COUNCIL AND ADMINISTRATIVE REPORTS:

Sean Conroy reported that the total number of building permits to date is 57 new homes. This does not include the 20 that have been received by DR Horton. A pre-construction meeting was held with Staker Parson for the trail project. They will begin June 19, 2017 and will complete the project middle of August. They are working on a change order for the completion of the section that wasn't complete on the first phase of the trail. Mountainland Association of Government has installed a counter on the trail. This will be moved periodically to different sections of the trial.

Steven Lord reported that the parking lot at the Ira Allan Sports Park has been completed. The purchase of the property has been completed. He received a concept plan for the futsal court and the pickle ball courts. He has made some changes for the water pressure issue. The pumps are running longer to allow for more pressure.

Chief Jackson stated that he had a meeting with the North Stake for Pioneer Day celebration. Tom and Lois Murdock are the grand marshals.

Cl. Reid stated that next week is the Chamber of Commerce lunch. Jeanette Herbert will speak.

Mayor Wall received a letter from a concerned citizen regarding having prayer at city events.

Cory Branch reported that the Memorial Day service went well. The PI has been completed around the surrounding areas of the Silver Leaf subdivision and 800 West. He will be informing the residents in this area.

Motion: Cl. Nelson moved to adjourn the meeting
Second: Cl. Hansen seconded the motion.
Passed unanimously at 8:30 pm.

APPROVED: **July 5, 2017**

Camille Brown, City Recorder

MA00201